



**Bureau of Experts at the Council of Ministers
Official Translation Department**

**Statute of the General Presidency of the Commission for the Promotion of Virtue and
Prevention of Vice**

Council of Ministers Resolution No. 289
April 11, 2016

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.

For any comments or inquiries, please contact the Official Translation Department at:

otd@boe.gov.sa



Resolution No.: 289

Date: 4/7/1437H

The Council of Ministers,

Upon perusal of the casefile which includes Shura Council Resolution No. 9/3, dated 10/3/1437H, and the annual report for the General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice for the fiscal year 1435/1436H;

Upon perusal of the Statute of the General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice, issued by Council of Ministers Resolution No. 73, dated 16/3/1434H;

Upon perusal of paragraph (2) of Article 24 of the Law of the Council of Ministers, issued by Royal Order No. A/13, dated 3/3/1414H;

Upon perusal of the Law of Criminal Procedures, issued by Royal Decree No. M/2, dated 22/1/1435H, and its Implementing Regulations;

Upon perusal of the draft Statute of the General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice, prepared by the Bureau of Experts; and

Upon perusal of Recommendation No. 1833, dated 4/7/1437H, of the General Committee of the Council of Ministers;

Resolves as follows:

First:

The Statute of the General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice in the attached form shall be approved.

Second:

The Ministry of Finance shall support the General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice with the necessary allocations to carry out its duties in the best manner.

Signed
Deputy Prime Minister



Statute of the General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice

Article 1

The General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice (referred to herein as "the Commission") shall be an independent body and shall report to the Prime Minister. All branch commissions for the promotion of virtue and prevention of vice shall report thereto.

Article 2

The President General of the Commission shall hold the rank of Minister, and shall be appointed by royal order. The Commission shall be staffed with a sufficient number of employees and members.

Article 3

A branch commission for the promotion of virtue and prevention of vice shall be established in each province pursuant to a decision by the President General of the Commission. Each branch shall be staffed with a sufficient number of employees and members. Centers for the branch commissions shall, as needed, be established in cities, counties, and districts.

Article 4

The President General of the Commission shall be responsible for the management of the Commission and the conduct of its affairs, and shall oversee branch commissions, in accordance with the provisions of this Statute. The powers of the President General in the Commission shall be the same as the powers of a minister.

Article 5

Without prejudice to the provisions of the Civil Service Law, members of the Commission who perform the duties stipulated in this Statute must meet the following requirements:

1. Possess the academic qualifications specified by the Implementing Regulations of this Statute.
2. Be qualified for the promotion of virtue and prevention of vice.
3. Be of good conduct and good reputation.
4. Has not been convicted of an offense punishable by a Sharia-prescribed penalty (*hadd*) or by imprisonment for a term exceeding one year, or any offense involving moral turpitude.

Article 6

The Commission shall, in accordance with this Statute and meeting the objectives of Sharia, have the powers to promote virtue and prevent vice with kindness and gentleness, following in that regard the Prophet Mohammed (PBUH) and his rightly-guided successors; it shall also contribute, alongside competent authorities, to combating narcotics and raising awareness of their harm to the family and society.



Article 7

The Commission and its employees shall exercise the powers stipulated in Article 6 of this Statute in accordance with the following controls:

1. The Commission shall, in the course of exercising the powers set forth in Article 6 of this Statute, submit official reports of any violation it detects to the Police or the General Directorate of Narcotics Control, as the case may be. Pursuant to applicable provisions, said authorities are the competent authorities entrusted with undertaking all subsequent procedures relating to those reports, including criminal and administrative enforcement procedures, detention, follow-up, pursuit, apprehension, interrogation, identity verification, investigation, and arrest in any report related to the Commission's jurisdiction.
2. Members of the Commission shall exercise the powers set forth in Article 6 of this Statute in markets, streets, and public places, during their official working hours as scheduled by the administration of each center. The heads of centers or members of the Commission shall not have the authority to pursue, stop, or detain individuals, or verify their identities, request their documents, or monitor them. Such powers shall fall within the jurisdiction of the Police and the General Directorate of Narcotics Control in accordance with paragraph (1) of this Article.
3. The Commission shall exercise the powers set forth in Article 6 of this Statute through its official members who occupy the positions approved in its budget.
4. A Commission member shall make his credentials visible; such credentials shall include his name, position, the center to which he is assigned, and his official working hours.

Article 8

The Commission shall have an advisory committee composed of five members, to be appointed by the Prime Minister. Such committee shall be entrusted with providing the President General with advice and recommendations regarding the Commission's exercise of its powers as well as advice and recommendations for handling any violations that may arise in this regard and holding violators accountable, in accordance with the Implementing Regulations of this Statute.

Article 9

Public and private entities shall cooperate with the Commission in the application of this Statute.

Article 10

The Prime Minister shall issue the Implementing Regulations of this Statute.

Article 11

This Statute shall supersede the Statute of the General Presidency of the Commission for the Promotion of Virtue and Prevention of Vice, issued by Council of Ministers Resolution No. 73, dated 16/3/1434H, and shall repeal any provisions conflicting therewith.

Article 12

This Statute shall be published in the Official Gazette and shall enter into force on the date it is communicated to the relevant parties.